

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 26, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Mr. Johnson and Mr. White, agenda item #15 was removed from the Consent Agenda. Upon request by Mr. Johnson, and pursuant to support received by Mr. Segrave and Mr. White, agenda item #23(b) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 12, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for the City of Cheyenne’s Annual Action Plan Fiscal Year 2021, prepared by the Cheyenne Housing and Community Development Office. Deanne Widauf, Housing and Community Development, provided a brief overview of the history and purpose of the Community Development Block Grant program, noting the proposed plan is consistent with the 5-year Comprehensive Consolidated Plan completed in 2020, and stated the anticipated allocation funding amount is \$478,351.00 and \$127,319.00 in recaptured funding. Ms. Widauf reviewed information on the grant application process; public notifications and opportunities for input; role of the Advisory Council in reviewing and recommending projects to be funded and explained the projects that are recommended for funding. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney Road. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-2 Agricultural to AG Agricultural for land located northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney

Road. Dr. Rinne moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Rescinding Footnote 1 in Ordinance No. 4314 appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said city and fixing the amount of General and Special Taxes as part of the revenue required to meet the said appropriation, all for the fiscal year beginning July 1, 2020, and ending June 30, 2021. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Upon inquiry, City Attorney Michael O’Donnell explained rescinding footnote 1 eliminates the cap on employees and noted there is no substitute document. Mayor Collins explained upon inquiry that there will be a large upcoming development project, and there is a need to hire a plan reviewer and two inspectors to handle the project. Robin Lockman, City Treasurer, provided information on the revenue amount the city will receive in relation to the project. Mayor Collins confirmed the footnote would expire at the end of the current fiscal year and that if the ordinance is approved, the footnote will be removed for the remaining months of this fiscal year. Mayor Collins further expressed the need to recruit and hire necessary employees prior to June 30, 2021. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule – referred to Finance Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) to increase the total lot coverage of the MD1, MD2, P-CV1, P-CV2, and P-CV3 lot types to 80% -- referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Creating Chapter 8.29, Hood System Cleaning Companies, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant to provide the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C.§5311. Motion (per Consent Agenda) carried. (#6138)

RESOLUTION – Adopting the City of Cheyenne’s Statement of Design Standards, Naming, Memorial and Gifting Policy. Dr. Rinne moved to adopt, seconded by Mr. Cook. Comment was made on the standards, page 2, under “Naming or Renaming for Exceptional Individuals”, 3rd and 4th lines pertaining to naming a facility after a person is deceased and it was noted the city hasn’t followed that practice in the past. Dr. Rinne moved to amend the standards

by deleting the sentences relating to naming rights after a person is deceased, seconded by Mr. Johnson. Teresa Moore, Director of Community Recreation and Events, upon inquiry, advised the naming standard used by their department used to require that 7 years must pass after a person had died prior to facility naming consideration and that at the request of Mr. Cook and Mr. Esquibel, it was reduced to 2 years. It was noted this document was crafted 10 years ago by the Parks & Recreation Department and was a common component based on past situations where a facility had to be renamed and was designed to address certain situations that can be handled differently. Comment was made that other agencies in the community limit naming rights to people who are deceased. Mr. O'Donnell confirmed upon inquiry that this proposed policy serves as a guide but allows for flexibility. Comments supporting the amendment were voiced. Motion to amend carried. Voting "yes" – all members of the governing body with the exception of Mr. Roybal and Mr. Segrave voting "no". It was advised that a request was made to the Historical Preservation Board to research and provide history on naming rights, noting the rich history the Cheyenne community has. Comment was made that city owned facilities should not have a person's name affiliated with it and that government entities have different policies relating to naming rights. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no". (#6139)

RESOLUTION – Setting the City's priorities for their allocation on the 1% Specific Purpose Sales and Use Tax in Laramie County, State of Wyoming, that would be put together by the County Attorney for a Special Election to be held on November 2, 2021. Amber Ash, Downtown Development Authority (DDA) Director, expressed appreciation to the governing body for their consideration for downtown district improvements noting many downtown infrastructure elements have deteriorated. Reporting for Committee of the Whole, Mr. White moved to adopt, seconded by Mr. Segrave. Mr. White moved to amend by substitute dated April 22, 2021 to include the following amendments made at the April 21st Committee of the Whole meeting: Revised entitlement language; removing item #5-Police Ammunition Purchase Project in the amount of \$40,000.00 and moving the funding in the amount \$40,000.00 to item #13-Downtown Development Authority (DDA) District Improvements and Maintenance Project for a total of \$6,017,966.00 and renumbering remaining sections. The substitute also includes the following amendments that were discussed but not amended during the meeting: Language revisions to item #8-Municipal Building Space Need Analysis Plan Project to reflect inclusion of design and engineering elements and creation of a fund for other needs at the current municipal building if funds are available; language revisions to item #7-Johnson Pool Renovation Project to reflect inclusion of design and engineering elements and determination of renovation or replacement costs, seconded by Mr. Segrave. It was noted that the road maintenance project and airport parking lot pavement project were discussed at the April 14th Committee of the Whole meeting as standalone projects on the ballot. Motion to amend carried. Voting "yes" – all members of the governing body. County Commissioner Gunnar Malm, upon request, provided information on the upcoming April 28th meeting and explained it would be on Zoom and open to the public for limited number of attendees, noting members of the 1% Specific Purpose Sales and Use Tax Committee will also be in attendance to start going through the projects. Mr. Malm explained there will be 3 bundle types for the projects and they will be put together in likeliness of projects and that a draft of projects would be presented at the meeting for consideration and discussion by the committee. He further noted there will be consideration for the City and Laramie County for standalone road

projects and that some Laramie County fire projects could be paired with the City's fire projects. Commissioner Malm, upon inquiry, advised that although the state statute has been revised to decrease the number of rural communities needed to approve the projects, the goal is for all towns to support approval. He reported the committee wants to be as inclusive as possible and work as a team as the county consists of 100,000 people. Comment was made in support of inclusion of all affected community members. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no". (#6140)

[CA] RESOLUTION – Adopting the City of Cheyenne Annual Action Plan 2021, prepared by the Cheyenne Housing and Community Development Office – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the submission of an application for federal assistance to the Federal Aviation Administration under the Coronavirus Response and Relief Supplemental Appropriations Act of 2021 to assist in funding costs related to operations, cleaning, sanitization, janitorial services, combating the spread of pathogens at the airport, and debt service payments – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the submission of an application for federal assistance to the Federal Aviation Administration for 'Design and Bidding Services for the Reconstruction Runway 9/27 (Phase III) Project' – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Directing City staff to plan and execute the completion of the 17th Street Lighting Project (Specific Purpose Sales Tax) – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Recognizing the historical interest and value of the Cheyenne Auxiliary Pumping Station located at 1504 Dillon Avenue, Cheyenne, Wyoming, and directing the City of Cheyenne to proceed with the steps necessary to protect and enhance this historic structure – referred to Public Services Committee. (Sponsor – Mr. Laybourn)

[CA] Professional Services Agreement between the City of Cheyenne and Stitches Acute Care Center, Cheyenne, for occupational medicine. Motion (per Consent Agenda) carried (in an amount not to exceed \$11,000.00). (#7331)

CA] Cable Franchise Agreement between the City of Cheyenne, Wyoming, and Clarity Telecom, LLC – referred to Finance Committee.

[CA] Amendment #1 to City Contract #7109 between the City of Cheyenne and the Wyoming Office of Homeland Security extending the term of the grant for the Cheyenne Regional Response Team #7 through December 31, 2021 (EMW-2019-SS-00065 Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$102,434.00). (#7109)

Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for group dental insurance benefits for City employees. Mr. Johnson declared conflict of interest due to a work affiliation and vacated council chambers. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson who didn’t vote. (#6837)

[CA] Consideration of Bid #E-19-21 for furnishing concealable body armor for the City of Cheyenne, Cheyenne Police Department (Federal Grants and General Fund). Motion (per Consent Agenda) carried (accepted bid from Galls, LLC, Lexington, KY, in the amount of \$79,610.00).

[CA] Consideration of Bid #E-20-21 for a Contract between the City of Cheyenne and Alco Fence Co. Inc., Cheyenne, for the fencing and gates for the City of Cheyenne Compost Facility Project (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$47,740.00). (#7332)

[CA] Consideration of Bid #E-25-21 for furnishing bituminous asphalt hot mix, tack oil, and cold mix on an annual basis, for the City of Cheyenne, Street & Alley Division (2019-2022 1 % Sales Tax). Motion (per Consent Agenda) carried (accepted bid Knife River d/b/a JTL Group Inc. Cheyenne, in the amount of \$45,000.00 and Simon Contractors, Cheyenne, in the amount of \$337,875.00, for a total amount of \$382,875.00)

[CA] Consideration of Bid #E-26-21 for furnishing aggregates on an annual basis, for the City of Cheyenne, Street & Alley Division (2019-2022 1 % Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Knife River d/b/a JTL Group, Inc. Cheyenne, in the amount of \$40,000.00).

[CA] Consideration of Bid #S-15-21 for a Contract between the City of Cheyenne and Craig Construction Services LLC, Laramie, WY, for the Michael Drive Sidewalk Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-16-21 for a Contract between the City of Cheyenne and Craig Construction Services LLC, Laramie, WY, for the Cheyenne Aquatics Center Main Pool Diving Boards Removal and Replacement (Specific Purpose Sales Tax, Laramie County Recreation Board Grant and Miscellaneous Non Federal Grants) – referred to Finance Committee.

[CA] Consideration of Bid #S-17-21 for a Contract between the City of Cheyenne and Streamline Markings, Inc., Billings, MT, for the 2021 Epoxy Striping Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-21-21 for furnishing one (1) new 2020-2021 front end wheel loader mounted, two stage blower for the City of Cheyenne, Street and Alley Division (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-22-21 for furnishing one (1) ¾ ton crew cab truck for the Traffic Division, one (1) ¾ ton regular cab truck for the City of Cheyenne Facilities Maintenance Division and three (3) ¾ ton crew cab trucks for the City of Cheyenne, Street and Alley Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-23-21 for furnishing two (2) new 2020 to 2021 mid-size SUVs for the City of Cheyenne, Public Works Department and Sanitation Department (2015-2018 and 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-24-21 for furnishing one (1) 2021-2022 mid-size pick-up truck for the City of Cheyenne, Sanitation Department and one (1) 2021-2022 mid-size pickup truck for the City of Cheyenne, Community Recreation and Events Department (2015-2018 % Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-27-21 for furnishing four (4) new Kubota RTV-X1100C utility vehicles for the City of Cheyenne, Community Recreation & Events Department (2015-2018 1% Sales Tax) – referred to Finance Committee.

Appointment of Stefanie Boster to the Planning Commission. Mr. Segrave moved to approve, seconded by Mr. Johnson. Appreciation was expressed to Ms. Boster for being willing to serve. Upon inquiry, Mr. O'Donnell provided information on Ms. Boster's background and how it relates to the Planning Commission. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of Public Hearing to be held May 10, 2021 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located north of Pershing Boulevard and west of Christensen Road.

Announcement was made of Public Hearing to be held May 10, 2021 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located east of and adjacent to South Greeley Highway [US 85], north of Chalk Bluff Road.

Announcement was made of Public Hearing to be held May 10, 2021 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive.

Announcement was made of Public Hearing to be held May 10, 2021 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, for a bar and grill liquor license application filed with the City Clerk's Office for HRARG DH Cheyenne, WY, LLC, d/b/a Dog Haus, 3838 Atkin St., Cheyenne Wyoming.

Announcement was made of Public Hearing to be held May 10, 2021 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, for a restaurant liquor license application filed with the City Clerk's Office for Tres Amigos Incorporated d/b/a Tres Amigos Family Mexican Restaurant, 2414 W. Lincolnway, Cheyenne, Wyoming.

Under other business:

Mr. Johnson invited the community to attend a fundraiser for Rooted in Cheyenne that will be held at Freedom's Edge starting at 5:00 p.m. on Friday, April 30th.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:46 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
May 5, 2021